BY ORDER OF THE COMMANDER
DAVIS-MONTHAN AIR FORCE BASE

DAVIS MONTHAN AIR FORCE BASE
INSTRUCTION 31-218

26 APRIL 2023

Security

MOTOR VEHICLE TRAFFIC SUPERVISION

COMPLIANCE WITH THIS PUBLICATION IS MANDATORY

ACCESSIBILITY: Publications and forms are available on the e-Publishing website at **www.e-Publishing.af.mil** for downloading or ordering.

RELEASABILITY: There are no releasability restrictions on this publication.

OPR: 355 SFS/S5S

Certified by: 355 MSG/CC
(Col Casey J. Bartholomew)

Supersedes: AFMAN31-116_DAVISMONTHANAFBSUP, 31 January 2018

Pages: 28

This instruction provides installation specific guidance to complement guidance found in DAFI 31-218, *Motor Vehicle Traffic Supervision*. The parent regulation will prevail in the event of conflicting guidance. This publication is not intended to be a standalone instruction. This instruction applies to all 355th Wing personnel and tenant units including Regular Air Force (RegAF); Air Force Reserve Command (AFRC); and Air National Guard (ANG) Units. This publication applies to all persons within the boundary of Davis-Monthan AFB. This publication requires the collection and maintenance of information protected by the Privacy Act of 1974, 5 USC § 552a. The authority to collect and maintain the records prescribed in this publication is 10 U.S.C. § 8013. System of Records Notice F125 AF SP L, Traffic Accident and Violation Reports, and F031 AF SP E Privacy Act Request Files applies. Refer recommended changes and questions about this publication to the Office of Primary Responsibility using the AF Form 847, *Recommendation for Change of Publication*; route AF Forms 847 from the field through the appropriate functional's chain of command. Ensure that all records created as a result of processes prescribed in this publication are maintained IAW AFI 33-322, Records Management an Information Governance Program, and disposed of IAW Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS). Contact supporting records managers as required.

SUMMARY OF CHANGES

This document has been substantially revised and must be completely reviewed. Changes include incorporating recommendations from the Compliance Statement Standard review; updating references; and complying with requirements established in DAFI 90-160, *Publications and Forms Management.* Adding Installation Commander supplemental point policy; reformatting tables; added definition of text messaging; clarified radar detection devices; cell phone use; and child passenger restraints based on DOD and MAJCOM guidance. Deleted motorcycle safety requirements and referred to AFI 91-207, *The Air Force Traffic Safety Program*, for all motorcycle safety requirements.

Chapter 1—INTRODUCTION **4**

1.1. Program Management 4

1.2. Responsibilities. 4

Chapter 2—DRIVING PRIVILEGES **5**

2.1. Requirements for Driving Privileges. 5

2.2. Stopping and Inspecting Personnel or Vehicles. 5

2.3. Implied Consent to Vehicle Impoundment. 5

2.4. Suspension or Revocation of Driving Privileges. 6

2.5. Suspension. 6

Table 2.1. Suspension of Driving Privileges. 7

Table 2.2. Revocation of Driving Privileges. 8

2.6. Reciprocal Procedures. 9

2.7. Administrative Due Process for Suspension and Revocation. 9

2.8. Alcohol and Drug Abuse Programs. 10

2.9. Restricted Driving Privileges or Probation. 10

Chapter 3—MOTOR VEHICLE REGISTRATION **11**

3.1. Registration on Davis-Monthan AFB. 11

3.2. Motorcycles. 11

3.3. All Terrain Vehicles (ATVs), Off-Highway Vehicles (OHVs) and Golf Carts. 11

Chapter 4—TRAFFIC SUPERVISION **12**

4.1. Traffic Planning. 12

4.2. Installation Traffic Codes. 13

4.3. Traffic Enforcement Principles. 13

4.4. Speed-Measuring Devices. 14

4.5. Pedestrian Safety..... 14
4.6. Traffic Accident Investigation. 14
4.7. Traffic Accident Investigation Reports. 14
4.8. Use of Traffic Accident Investigation Report Data. 15
4.9. Parking 15
4.10. Traffic Violation Reports. 16
4.11. Training of Law Enforcement for Processing Drunk Drivers. 17
4.12. Blood Alcohol Concentration Standards. 17
4.13. Chemical Testing Policies and Procedures. 17
4.14. Drug or Narcotic DUI Policies and Procedures. 17

Chapter 5—DRIVING RECORDS AND TRAFFIC POINT SYSTEM 18

5.1. Traffic Ticket Rebuttal Procedures. 18
5.2. Restraint Systems. 19
5.3. Moving and Non-Moving Violations. 19
5.4. Cell Phone Use While Driving. 19
5.5. Point Assessments. 20

Chapter 6—IMPOUNDING PRIVATELY OWNED VEHICLES 21

6.1. Abandoned Vehicles. 21
6.2. Removal/Towing. 21

Attachment 1—GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION 22

Attachment 2—MOVING AND NON-MOVING VIOLATIONS AND POINTS ASSOCIATED 26

Chapter 1

INTRODUCTION

1.1. Program Management . The Davis-Monthan AFB Vehicle Traffic Code is hereby established and applies to all vehicles and vehicle operators within the geographical limits of Davis-Monthan AFB, Arizona. Any revision of this instruction must include thorough consideration of all existing rules, directives, and command policy to the degree that essential functions are properly synchronized and reflect reasonableness and uniformity where possible.

1.2. Responsibilities.

1.2.1. The Installation Commander (355 WG/CC) has delegated the 355th Mission Support Group Commander (355 MSG/CC) authority to establish and manage the local installation traffic supervision program on Davis-Monthan AFB.

1.2.2. The Commander, 355th Security Forces Squadron (355 SFS/CC), is responsible for implementation of directives necessary to enforce the provisions of the Davis-Monthan AFB Traffic Code and implement temporary or experimental directives to cover emergencies/special conditions. The 355 SFS/CC is the principal advisor to the 355 MSG/CC concerning safe movement of motor vehicles and personnel on the installation. The directing, regulating, and controlling of traffic, and enforcement of installation rules pertaining to traffic control are the responsibility of the 355 SFS/CC.

1.2.3. The installation safety officer will make recommendations concerning the operation of motor vehicles, review roadway construction plans, and advise on remedial measures required to eliminate safety hazards.

1.2.4. The Base Civil Engineer (BCE) is directed to appoint an individual with supporting staff from the 355th Civil Engineer Squadron (355 CES) to serve as the Davis-Monthan AFB Traffic Engineer. The traffic engineer will report directly to the Traffic Safety Coordination Group (TSCG). This individual will exercise the power and duties with respect to traffic as provided in this instruction. The duty of the traffic engineer is to determine the installation, proper timing, and maintenance of traffic control devices; conduct engineering analysis of traffic accidents and devise remedial measures; conduct engineering investigation of traffic conditions; plan the operation of traffic on the streets of Davis-Monthan AFB; coordinate with the 355 SFS/CC, Chief of Safety, and the 355 MSG/CC in developing ways and means to improve traffic conditions; and carry out the additional powers and duties imposed by this instruction. The installation traffic engineer may test traffic-control devices under the actual conditions of traffic. The traffic engineer shall ensure that proper traffic control devices are installed temporarily during work and maintenance of roadways to ensure safe and efficient movement of traffic.

Chapter 2

DRIVING PRIVILEGES

2.1. Requirements for Driving Privileges.

2.1.1. Driving a government owned vehicle (GOV) or privately owned vehicle (POV) on an Air Force installation is a privilege granted by the Installation Commander. If you accept that privilege, you must comply with the laws and instructions governing motor vehicle operation and registration on the installation. Consequently, any person operating a motor vehicle on the installation must produce, upon request from the Security Forces, the following:

2.1.1.1. Proof of valid registration. Per DOD guidance, proof of valid registration MUST be carried in the vehicle regardless of local or state laws where the vehicle is registered and must be produced upon demand of a law enforcement officer. Proof of valid registration may be presented on paper or electronic copy.

2.1.1.2. Valid state driver's license, applicable to the class of vehicle they are driving. Driver's license MUST be legible, physically in their possession, and must be displayed upon demand of a law enforcement officer.

2.1.1.3. Proof of valid and current vehicle insurance. Proof of insurance may be a paper or electronic copy and must be displayed upon demand of a law enforcement officer.

2.2. Stopping and Inspecting Personnel or Vehicles.

2.2.1. Refer to DAFI 31-218 Para. 2-2, but additionally for DMAFB, the following criteria applies:

2.2.1.1. Searches and traffic stops are authorized if there is reasonable suspicion of criminal activity, or it is necessary to enforce traffic laws and regulations as outlined in the parent instruction; or to enforce the Installation Commanders policies or directives.

2.2.1.2. Implied Consent to Blood, Breath, or Urine Tests**.** Per DAFI 31-218 Para 2-3a, specifies that persons who drive on the installation shall be deemed to have given their consent to evidential tests for alcohol or other drug content of their blood, breath, or urine when lawfully stopped, apprehended, or cited for any offense allegedly committed while driving or in physical control of a motor vehicle on military installations to determine the influence of intoxicants. **Note:** Failure to submit to or complete blood, breath or urine testing will result in an immediate automatic 1-year revocation of driving privileges.

2.3. Implied Consent to Vehicle Impoundment.

2.3.1. Refer to DAFI 31-218 Para 2-3b for guidance. For purposes of defining an "unreasonable" period, as it relates to a vehicle parked on DMAFB, is 3 duty days. After 3 duty days the vehicle will be considered abandoned and may be impounded. For further information on impounding vehicles see **Chapter 6** of this instruction.

2.3.2. All installation access control points have signage posted at the inbound lane reiterating the Implied Consent policy. Additionally, the 355th Wing Public Affairs and the 355th Force Support Squadron may routinely publish base-wide communications reiterating the Implied Consent policy or may conduct periodic briefings.

2.3.3. As a condition to accepting installation driving privileges, drivers give implicit consent for the removal and temporary impoundment of their POV if it is:

2.3.3.1. Illegally parked for an unreasonable period.

2.3.3.2. Interferes with traffic operations or impedes the flow of traffic.

2.3.3.3. Creates a safety hazard.

2.3.3.4. Disabled by accident or incident.

2.3.3.5. Left unattended in, or adjacent to, a restricted, controlled area, or off-limits areas.

2.3.3.6. Abandoned.

2.3.3.7. Vehicle registration is expired past 30 days of date of renewal.

2.3.4. Drivers agree to reimburse an authorized agency or contractor for the cost of towing, storage, and disposal should their motor vehicle be impounded.

2.4. Suspension or Revocation of Driving Privileges.

2.4.1. The 355th Mission Support Group Commander (355 MSG/CC), as designated by the Installation Commander, may suspend or revoke installation-driving privileges for lawful reasons both related and unrelated to traffic violations or safe vehicle operations.

2.4.2. The installation commander may also institute a supplemental point assessment policy. Any violation or offense listed in **Attachment 2** of this instruction may result in assessment of points and may result in additional driving restrictions on Davis-Monthan AFB.

2.4.3. When a person is caught operating a motor vehicle in violation of their base driving suspension or revocation, the 355 MSG/CC will issue an additional two-year suspension or revocation as appropriate.

2.4.4. Definitions of Suspension and Revocation.

2.4.4.1. Suspension shall mean a person's installation driving privileges are rescinded immediately upon suspicion of committing a qualifying offense.

2.4.4.2. Revocation shall mean that the charges or accusations have been adjudicated and found sufficient to deny a person installation driving privileges.

2.5. Suspension.

2.5.1. The 355 MSG/CC has the authority to suspend an individual's driving privileges for serious violations or when previous measures fail to improve the driver's performance. The 355 MSG/CC may suspend driving privileges for up to one year under any of the following conditions:

2.5.1.1. Individuals who continually violate parking standards approved by the Installation Commander as outlined in this instruction.

2.5.1.2. Habitual violations of other non-moving standards and policies as contained in this instruction.

2.5.1.3. Operating a motor vehicle on Davis-Monthan AFB with a blood alcohol content (BAC) or breath alcohol content (BrAC) of 0.08 percent or higher. If the individual

operating the vehicle is under the age of 21 with a BAC or BrAC that registers as having **any** amount of alcohol in their system, it is also considered DUI.

2.5.1.4. If the individual who is operating a vehicle with a BAC or BrAC less than 0.08 percent but has demonstrated actions that deem them unable to operate a vehicle in a safe manner.

2.5.1.5. Possessing and/or presenting proof of insurance that a person knows to be suspended, canceled, out of date, stolen, or otherwise invalid will result in a one-year suspension of on-base driving privileges against the vehicle operator.

2.5.2. Revocation.

2.5.2.1. The 355 MSG/CC will immediately revoke driving privileges for a period not less than one year in the following circumstances:

2.5.2.1.1. A person is lawfully detained for intoxicated driving and refused to submit to or complete tests to measure blood alcohol or drug content as required by the law of the jurisdiction, installation traffic code, or this instruction.

2.5.2.1.2. A conviction, non-judicial punishment, or military or civilian administrative action resulting in the suspension or revocation of a driver's license for intoxicated driving. Official documentation is required as the basis for this type of revocation action.

2.5.2.1.3. When a serious incident involving a motor vehicle occurs and the installation commander or designee determines immediate revocation of driving privileges is required to preserve public safety or to maintain good order and discipline of military personnel.

Table 2.1. Suspension of Driving Privileges.

VIOLATION	First Offense	Second Offense	Third Offense
Driving Under the Influence (DUI) – Driving with a blood alcohol content (BAC) of .080% by volume or higher. (**Note 1**)	1 year	2 years	Additional 2 years
DUI – breath alcohol content (BrAC)/BAC at least .05% but less than .08% combined with other related factors which results in DUI (not driving while impaired (DWI)) being charged (**Note 1**)	1 year	Additional 2 years	Additional 2 years
Refusal to submit to a test of Blood, Breath, or Urine to determine level of intoxication (Implied Consent) or refusal to complete testing (**Note 1**)	1 year	Additional 2 years	Additional 2 years

Note 1: This is for suspension pending resolution of an intoxicated driving incident. Individuals with suspended or revoked driving privileges are not authorized to drive on base at any time without approved limited driving privileges granted by 355 MSG/CC and valid state driver's license.

2.5.2.2. When a violator accumulates points or commits an offense as identified in **Table 2.2** below and **Table 5.1**, their driving privileges are revoked for the period specified. The 355 MSG/CC will revoke driving privileges for the following offenses:

Table 2.2. Revocation of Driving Privileges.

VIOLATION	First Offense	Second Offense	Third Offense
Breath, Blood, or Urine Test refusal upon request (Implied Consent) or refusal to complete testing (**Note 1**)	1 year	Additional 2 years	Additional 2 years
Vehicle Owner knowingly and willingly permits a physically impaired person to operate a motor vehicle.	1 year	2 years	Additional 2 years
Accumulates 12 points within 12 months.	1 year	N/A	N/A
Accumulates 18 points within 24 months.	1 year	N/A	N/A
DUI - Driving Drunk or Impaired with a BAC of .080% by volume or higher. (**Note 1)**	1 year	2 years	Additional 2 years
DUI - BrAC/BAC at least .05% but less than .08% combined with other related factors which result in DUI being charged (**Note 1 and 2**)	1 year	2 years	Additional 2 years
Driving while license is suspended	1 year	2 years	Additional 2 years
Driving without insurance	1 year	2 years	Additional 2 years

Note 1. DUI results in revocation immediately upon refusal to submit or complete BAC testing, receipt of Commander's action for on-base incidents, or receipt of official documentation for off-base incidents.

Note 2. DUI related factors include but are not limited to driving behavior; patrolman observation; and Field Sobriety Test performance.

2.5.3. When the driving privileges of an individual have been suspended or revoked, the patrolman will change the individual's driving status in DBIDS and AFJIS to match the Suspension Revocation Debarment Wanted (SRBW) listing. BDOC will cross reference DBIDS, JWI and AFJIS to verify driving privilege statuses.

2.5.3.1. DBIDS will automatically reinstate the individual's driving privileges after the suspension period has been completed. Spouse or family members are authorized to operate their motor vehicle provided they have the appropriate military identification in addition to the requirements listed in **Para 2.1** of this instruction.

2.5.4. The 355 MSG/CC is the designated authority to issue notice of preliminary suspension of driving privileges to personnel assigned to, employed by, or visiting Davis-Monthan AFB

who have been apprehended or charged for operating a motor vehicle under the influence of alcohol or drugs.

2.5.4.1. The on-duty SF Flight Commander, Flight Chief or Flight Sergeant will ensure a preliminary suspension memorandum is issued to personnel apprehended or charged for DUI on the installation.

2.5.4.2. SF Flight personnel will issue preliminary suspension memorandums to those personnel apprehended for DUI off-base upon receiving a civilian arrest report or other official notification.

2.6. Reciprocal Procedures.

2.6.1. All revocations issued by other installation commanders regardless of service component or affiliation will be honored/enforced at Davis-Monthan AFB.

2.6.2. Revocations and suspensions remain in effect during Permanent Change of Station/ Assignment unless the issuing authority terminates the revocation before PCS/PCA.

2.6.3. Anyone with suspended or revoked privileges may petition the 355 MSG/CC for partial or limited driving privileges by submitting their requests to 355 SFS/S5R for processing IAW **Para 2.10.2** of this instruction. If an individual relocates to Davis-Monthan AFB with suspended or revoked privileges from a previous installation, the individual must attempt to receive approval through the original suspending authority.

2.7. Administrative Due Process for Suspension and Revocation.

2.7.1. Incidents involving driving drunk, impaired, or refusal to submit to implied consent will result in **immediate** suspension or revocation. For incidents not involving implied consent, the 355 MSG/CC will determine the duration of a suspension or revocation action after receiving a request for an administrative hearing. For offenses listed above in Tables **2.1**, **2.2**, or **5.1**, the 355 MSG/CC will authorize an immediate suspension based on reliable evidence. If the 355 MSG/CC determines the offense does not warrant a suspension or revocation, the suspension or revocation action will be rescinded.

2.7.2. Individuals whose driving privileges are suspended or revoked have the right to request, in writing, a hearing before the 355 MSG/CC. The request for a hearing must be submitted to 355 SFS/S5R within 14 calendar days of receiving the suspension or revocation letter for processing. **Note:** If a request for a hearing is not received within the 14-calendar day window, then no hearing will be scheduled, and the suspension action will take effect.

2.7.3. Hearings for drunk or impaired driving will cover only the pertinent issues of whether:

2.7.3.1. The law enforcement official had reasonable suspicion that the individual was operating or in physical control of a motor vehicle while under the influence of alcohol or other drugs.

2.7.3.2. The individual was lawfully cited, arrested, or apprehended for a drunk or impaired driving offense.

2.7.3.3. The individual was asked to submit to a test for alcohol or other drug content of blood, breath, and/or urine and was informed of the consequences for refusing to submit to or complete such a test.

2.7.3.4. The individual refused to submit to testing of their blood, breath, and/or urine; failed to complete the test; the test reveals alcohol content in excess of legal limits; or the results indicate the presence of other illicit substances requiring apprehension of the individual.

2.7.3.5. The testing methods used were valid and reliable, and the results were accurately recorded and evaluated.

2.8. Alcohol and Drug Abuse Programs.

2.8.1. Commanders will refer military personnel suspected of drug or alcohol abuse for evaluation.

2.8.2. Air Force personnel apprehended for drunk driving, on or off the installation, will be referred to the Air Force Substance Abuse Office for evaluation IAW DAFI 44-121*, Alcohol and Drug Abuse Prevention and Treatment* (ADAPT) *Program* within 7 calendar days.

2.9. Restricted Driving Privileges or Probation.

2.9.1. Unless prohibited by higher authority, the 355 MSG/CC may authorize limited driving privileges to those whose authority to drive has been suspended or revoked. **Note:** The driver's license must not have been suspended or revoked by the issuing authority (state) for the 355 MSG/CC to grant limited driving privileges. If limited driving privileges were already granted, the privileges will be terminated, and the individual must return the limited driving privileges memorandum to 355 SFS/S5R.

2.9.2. Requests for Limited Driving Privileges must be made in writing through the unit commander for concurrence or non-concurrence. All requests, regardless of concurrence or non-concurrence by the squadron commander, will be submitted to 355 SFS/S5R for presentation to the 355 MSG/CC. The request must describe, in detail, the hardship created, and the exact driving privileges requested. If approved, a copy of the approved request must be in the person's possession when operating or in physical control of a vehicle and must be presented to Security Forces upon demand. It is the responsibility of the violator whose driving privileges are revoked, to maintain a copy of the approved limited privileges memorandum. Failure to produce this document upon demand can result in apprehension or adverse action IAW Art. 92, UCMJ, Failure to obey order or regulation.

2.9.3. Reinstatement of Driving Privileges occurs automatically after the period of suspension or revocation expires.

2.9.4. If the initial suspension/revocation was based on an alcohol or illegal substance incident, the unit commander will ensure completion of required substance abuse courses.

2.9.4.1. The appropriate course must be completed before the individual's suspension/revocation period expires.

2.9.5. Unique requests or requests for early reinstatement will be submitted to 355 SFS/S5R and forwarded to the 355 MSG/CC for final determination.

Chapter 3

MOTOR VEHICLE REGISTRATION

3.1. Registration on Davis-Monthan AFB.

3.1.1. Vehicles are not required to be registered through the installation; however, to drive on the installation, the vehicle must have current state registration, adequate insurance and must be road worthy/safe to drive in accordance with state/federal laws.

3.1.2. On-duty Security Forces have 24-hour access to registration information utilizing Justice Web Interface (JWI).

3.2. Motorcycles.

3.2.1. All military members who ride a motorcycle on or off-duty and AF civilian personnel who ride while in a duty status must complete an intermediate approved motorcycle course (e.g., BRC 2, Experienced Rider Course (ERC), Advanced Riders Course (ARC), Military Sport bike Rider Course (MSRC), etc.) within 120 days after completion of initial training. A valid driver's license endorsed for motorcycle operation is required regardless of if the issuing state requires a motorcycle endorsement or not. If a person's home state does not require a motorcycle endorsement, a motorcycle endorsed Arizona driver's license class 1 or 3 is required.

3.2.2. Motorcycles will not "lane filter" or split lanes at any time on DMAFB. Motorcycles may ride abreast (side-by-side) another motorcycle in the same lane but will not deprive other motor vehicles the use of the full lane of travel.

3.3. All Terrain Vehicles (ATVs), Off-Highway Vehicles (OHVs) and Golf Carts.

3.3.1. Off-Road Vehicles may operate on the public throughways but must be registered through the state.

3.3.2. There are no approved areas on DMAFB for recreational ATV or OHV use. All privately owned ATVs, OHVs, and Golf Carts must operate on paved driving surfaces while on DMAFB.

Chapter 4

TRAFFIC SUPERVISION

4.1. Traffic Planning.

4.1.1. Davis-Monthan Traffic Safety Advisory Board will develop a Traffic Circulation Plan that will provide the safest and most efficient use of all primary and secondary roads on Davis-Monthan AFB to include the use of installation gates.

4.1.2. Authority to Install Traffic-Control Devices. The base traffic engineer will install official traffic-control devices when required under the traffic code of Davis-Monthan AFB and in compliance of National Highway Traffic Safety Administration (NHTSA) standards, to make the provisions of this instruction effective, and will place and maintain additional official traffic-control devices as deemed necessary to regulate, warn or guide traffic, under this instruction or the state vehicle code.

4.1.3. No person, entity, agency, or organization shall install any traffic-control device, to include signs or markings depicting reserved or regulated parking, without the written approval of the traffic engineer or traffic safety board.

4.1.3.1. Manual and Specifications for Traffic-Control Devices. All traffic-control signs, signals, and devices shall conform to the manual on Uniform Traffic-Control Devices for Streets and Highways, U.S. Department of Transportation, and Federal Highway Administration. All signs and signals required herein for a particular purpose shall be uniform as to the type and location throughout Davis-Monthan AFB. Traffic control devices erected with appropriate approval and not inconsistent with the provisions of state law or this instruction shall be official traffic-control devices.

4.1.4. Obedience to Official Traffic-Control Devices to include pedestrian flashing cross walk signs. The driver of any vehicle will obey the instruction of any official traffic-control device installed IAW the provisions of this instruction, unless otherwise directed by a firefighter at or in proximity of a fire, or Security Forces personnel directing traffic, subject to the exception granted to a driver of an authorized emergency vehicle.

4.1.5. Official traffic-control devices placed pursuant to the provisions of this instruction and that conform to the lawful requirements pertaining to these devices will be presumed to comply with the requirements of this instruction unless the contrary is established by competent authority.

4.1.6. Authority to establish play, parade, and ceremony streets. With concurrence of the 355 MSG/CC, the base traffic engineer shall have the authority to declare any street or part thereof, as a play, parade or ceremony street, and place appropriate signs or devices in the roadway indicating type of activity taking place.

4.1.7. Authority to Designate Crosswalks. With concurrence of the 355 MSG/CC, the base traffic engineer is hereby authorized to designate and direct maintenance by appropriate devices, marks, and lines on the surface of the roadway and crosswalks at intersections that may cause danger to pedestrians crossing the roadway, and at another place, as they may deem necessary.

4.1.8. Traffic Lanes. The base traffic engineer is hereby authorized to mark traffic lanes on the roadway of any street or roadway where a regular alignment of traffic is necessary.

4.2. Installation Traffic Codes.

4.2.1. Installation Commander or designee will establish a traffic code for operation of motor vehicles on the installation. Traffic codes will contain the rules of the road (parking violations, towing instructions, safety equipment, and other key provisions). Violations of state traffic codes are applicable to base driving records when the offense is included in the state's criminal code.

4.2.2. The local policies detailing traffic stops, inspection, search, towing, and impoundment of vehicles is locally developed and maintained by the 355 SFS.

4.2.3. Arizona Revised Statute (ARS), Title 28, *Transportation* applies on DMAFB. However, due to proprietary jurisdiction on the installation, ARS is not explicitly enforceable by Security Forces unless such infractions are enforceable by this instruction or applicable guidance.

4.2.4. While driving on the installation, music will not be played at a volume loud enough to be heard 50 feet away from the vehicle. Drivers must remain vigilant to road and traffic conditions.

4.3. Traffic Enforcement Principles.

4.3.1. Traffic enforcement should motivate drivers to operate vehicles safely within traffic laws and regulations and maintain an effective and efficient flow of traffic. Effective enforcement should emphasize voluntary compliance by drivers and can be achieved by the following actions:

4.3.1.1. Publishing a realistic traffic code well known by all personnel.

4.3.1.2. Adopting standard signs, markings, and signals in accordance with National Health and Safety Performance Standards and the Manual on Uniform Traffic Control Devices for Streets and Highways.

4.3.1.3. Ensuring enforcement personnel establish courteous, personal contact with drivers and act promptly when driving behavior is improper or a defective vehicle is observed in operation.

4.3.1.4. Maintaining an aggressive program to detect and apprehend persons who drive while privileges are suspended or revoked.

4.3.1.5. Using sound discretion and judgment in deciding when to apprehend, issue citations, or warn the offender.

4.3.2. Selective enforcement will be used when practical. Selective enforcement deters traffic violations and reduces accidents by the presence or suggested presence of law enforcement personnel at places where violations, congestion, or accidents frequently occur. Selective enforcement applies proper enforcement measures to traffic congestion and focuses on selected time periods, conditions, and violations that cause accidents or endanger public safety. Enforcement activities against intoxicated driving will include:

4.3.2.1. Detecting, apprehending, and testing persons suspected of driving under the influence of alcohol or drugs.

4.3.2.2. Training law enforcement personnel in special enforcement techniques.

4.3.2.3. Enforcing BrAC and/or BAC standards.

4.3.2.4. Denying installation driving privileges to persons whose use of alcohol or other substances prevents safe operation of a motor vehicle.

4.4. Speed-Measuring Devices.

4.4.1. Speed measuring devices will be used in traffic control studies and enforcement programs. Signs may be posted to indicate speed measuring devices are being used.

4.4.2. The use of radar or laser detection devices that are used to detect the presence of speed recording instruments or to transmit simulated erroneous speeds are prohibited on DMAFB.

4.5. Pedestrian Safety.

4.5.1. Pedestrians on DMAFB will exercise "shared" right-of-way with vehicular traffic. For safety, pedestrians will use crosswalks where available. If no crosswalk is marked, pedestrians will cross at street corners or intersections. Pedestrians will not enter lanes of vehicular traffic unless it is safe to do so and will ensure vehicles have enough distance to safely stop.

4.5.2. While in crosswalks, pedestrians will have right-of-way ahead of them. Traffic may proceed once the pedestrian exits the lane of travel and does not need to remain stopped for the pedestrian to reach the opposite side of the street.

4.5.3. Pedestrians walking along roadway for fitness purposes will walk/run against the flow of vehicular traffic to maintain situational awareness of approaching vehicles. When running or walking on roadways, pedestrians are prohibited from wearing headphones or earbuds. If walking/running on or along a roadway during hours of darkness or during limited or reduced visibility, each pedestrian should wear a reflective garment or utilize some form of illumination (i.e., flashlight, headlamp, etc.).

4.6. Traffic Accident Investigation.

4.6.1. Installation law enforcement personnel must make detailed investigations of major accidents.

4.6.2. Security Forces will not conduct off-base accident investigations.

4.6.3. Security Forces will respond to all on-base major accidents (see **paragraph 4.6.1**). For minor vehicle accidents, the driver(s) will exchange insurance information.

4.7. Traffic Accident Investigation Reports.

4.7.1. Minor Vehicle Accident: A vehicle accident is classified as a minor accident if all the below criteria are met:

4.7.1.1. The accident does not result in injury or fatality.

4.7.1.2. The damage to involved POV(s) or property is less than $10,000.

4.7.1.3. The vehicle can be safely and normally driven under its own power.

4.7.2. Major Vehicle Accident: A vehicle accident is classified as major accident if any of the below criteria are met:

4.7.2.1. The accident results in a fatality.

4.7.2.2. The accident results in injury to any person regardless of severity.

4.7.2.3. The accident renders any involved vehicle inoperable, or any involved vehicle cannot be driven safely under its own power.

4.7.2.4. The accident results in $10,000 or more in damage.

4.7.2.5. The accident involves any Government Owned Vehicle.

4.7.2.6. The accident is difficult to explain or occurs under suspicious circumstances.

4.7.2.7. The 355 SFS will accomplish a report via AFJIS for major vehicle accidents only.

4.7.2.8. Information in the written report cannot be used in criminal proceedings against the person submitting it unless it was originally categorized a hit-and-run and the violator is the person submitting the report.

4.7.3. Within the United States, installation law enforcement officials may require such reporting on Service forms or forms of the State jurisdiction. Reports will include the following about the accident:

4.7.3.1. Location, date, and time.

4.7.3.2. Identification of all drivers, pedestrians, and passengers involved.

4.7.3.3. Identification of vehicles involved.

4.7.3.4. Direction and speed of travel of each vehicle involved, including a sketch of the collision and roadway with street names and north arrow.

4.7.3.5. Property damage involved.

4.7.3.6. Environmental conditions at the time of the incident (weather, visibility, road surface condition, and other factors).

4.7.3.7. A narrative description of the events and circumstances concerning the accident.

4.8. Use of Traffic Accident Investigation Report Data.

4.8.1. Analyze data derived from traffic accident investigation to determine accident causes. When frequent accidents occur in one area, analyze location conditions, type of accidents, and other factors to isolate causes. Except for Privacy Act information, make accident data and trend analysis available to agencies requesting the data for reporting and analytical purposes. Except for requests filed under the Freedom of Information Act, IAW AFI 31-115 statistical data can only be obtained or released by DAF-CJIC.

4.9. Parking .

4.9.1. Guidance for enforcers and limiting towing to specific offenses is developed and maintained locally by the 355th Security Forces Squadron.

4.9.2. All vehicles parked on DMAFB must park within marked spaces and will not impede vehicular or pedestrian traffic, crosswalks, or sidewalks. If pavement markings are faded or

otherwise not clearly visible, every reasonable attempt to park within the intended space will be made. Emergency, work, and delivery vehicles are authorized to park in any location and in any manner to effectively accomplish their official duties, however they will make all reasonable attempts to not impede vehicle or pedestrian traffic.

4.9.3. The 355 MSG/CC has authority to designate reserved parking on DMAFB. Handicapped Parking, at a minimum, will be marked with a posted sign at least 60 inches high as measured from the bottom of the sign, and must be visible while a vehicle is parked in the designated space. This sign may be affixed to a wall or signpost and must include at a minimum, the International Symbol of Accessibility ("handicapped logo"). Additionally, handicapped accessible parking spaces should include painted pavement markings IAW ADA Standards.

4.9.4. Base Housing and Dormitories.

4.9.4.1. Housing residents and their guests should make every reasonable attempt to park in garages, carports, or driveways associated with that address. If parking in the street, vehicles will not impede the safe flow of vehicle traffic or pedestrians upon the sidewalk. Additionally, when parking on a street, vehicles will not be parked facing the opposite direction of travel. Vehicles will not be parked in yards, seeded areas, or unpaved areas in base housing.

4.9.4.2. Dormitory residents and their guests must park in marked parking spaces.

4.10. Traffic Violation Reports.

4.10.1. The DD Form 1408, *Armed Forces Traffic Ticket,* is utilized at Davis-Monthan AFB for all traffic violations on the installation.

4.10.2. Traffic tickets require command action, the violator's unit, or section commander must sign them. First Sergeants or other personnel may only complete the administrative process of the ticket, i.e., issuing a Letter of Counseling IAW DAFI 36-2907, *Adverse Administrative Actions* and other applicable regulations.

4.10.3. Vehicles cited for safety defects, commonly referred to as "Fix-It-Tickets", will have 72 hours to correct the defect. The owner will report to BDOC/Bldg 1358, with the vehicle to indicate the violation has been corrected. Failure to fix the defect or failing to report to BDOC within 72 hours will result in the ticket being processed for action.

4.10.4. Vehicle operators cited for failing to show valid driver's license, vehicle registration, or insurance will report to BDOC within 72 hours and provide the documentation. If the violator does not provide the requested documentation within the 72-hour window, then the ticket will be processed for action.

4.10.5. Under no circumstances will any Security Forces member issue a DD Form 1408 based solely on reports of a violation that was not witnessed by an on-duty Security Forces post or patrol.

4.10.6. Traffic Ticket Rebuttal Process: Instructions for rebutting traffic tickets will be affixed or hand-written on the reverse of the pink violator copy of the ticket. The issuing patrolman may explain the instructions at their discretion.

4.10.7. Serious traffic offenses that occur on the installation (e.g., DUI, vehicular homicide, etc.) involving non-DoD affiliated personnel will be referred to civilian law enforcement authorities. Security Forces will complete a report in AFJIS.

4.11. Training of Law Enforcement for Processing Drunk Drivers.

4.11.1. Security Forces members will be trained by the Arizona Department of Public Safety and certified by the Arizona Department of Health to operate the Intoxilyzer 9000. Individuals will attend refresher training as required.

4.12. Blood Alcohol Concentration Standards.

4.12.1. Administrative revocation of driving privileges and other enforcement measures will be applied uniformly to offenders driving under the influence of alcohol or drugs. When a person is tested under the implied consent provisions in this guidance, the results of the test will be evaluated.

4.13. Chemical Testing Policies and Procedures.

4.13.1. Breath tests to determine alcohol content will be administered at Davis-Monthan AFB by certified Security Forces personnel. The Intoxilyzer 9000 will be used to obtain and document breath alcohol content, referred to as BrAC, for military personnel apprehended for intoxicated driving incidents. Additionally, blood tests may be used to determine blood alcohol content, referred to as BAC, and will be administered by qualified 355th Medical Group personnel at the Davis-Monthan Clinic laboratory. Alcohol dehydrogenize test kits will be used to obtain and document results. Any combination of the tests may be used to determine if a person is intoxicated or under the influence.

4.13.2. At no time will Security Forces personnel initiate any Standardized Field Sobriety Tests (SFSTs) or chemical test (portable or otherwise), to a civilian suspected of operating a motor vehicle while impaired or intoxicated. Security Forces personnel will detain the driver and contact civilian law enforcement in these situations.

4.14. Drug or Narcotic DUI Policies and Procedures.

4.14.1. If a driver is suspected of driving a vehicle while under the influence of a substance other than alcohol, Security Forces personnel will automatically request authority to search and seize blood and/or urine via AFIMT 1176 to determine if the suspect is intoxicated or under the influence of drugs.

4.14.2. If a civilian driver is suspected of driving under the influence of a substance other than alcohol, Security Forces personnel will detain the driver and contact civilian law enforcement.

Chapter 5

DRIVING RECORDS AND TRAFFIC POINT SYSTEM

5.1. Traffic Ticket Rebuttal Procedures.

5.1.1. Instructions to rebut traffic tickets issued on DMAFB will be affixed or written on the reverse of the pink violator copy of the ticket. In case the instructions are unclear or illegible, violators can contact 355 SFS/ S5R, Reports and Analysis Section for specific instructions.

Table 5.1. Suspension or Revocation of Driving Privileges.

Assessment 1: 1 year revocation of driving privileges. **(Note 1 and 2)** **Violation:** - Operating a motor vehicle with a student driver's permit without a licensed driver in the vehicle. - Operating a motor vehicle without a driver's permit ever being issued. For drivers under the age of 16 years old, the suspension or revocation will begin on the first day they would normally become eligible for a license. - Driving with a suspended driver's license.
Assessment 2: 1-year suspension or revocation of driving privileges. **(Note 1 and 2)** **Violation:** - Operating a vehicle with an alcohol content level of 0.08% or higher (DUI). - DUI - BrAC/BAC at least .05% but less than .08% combined with other related factors which results in DUI (not DWI) being charged. - Knowingly permitting an unlicensed driver or a driver whose driving privileges were suspended or revoked, to operate a motor vehicle. - Refusal to submit to installation entry point checks. - Accumulation of 12 traffic points within 12 consecutive months, or 18 traffic points within 24 consecutive months.
Assessment 3: 1-year revocation of driving privileges. **(Note 1 and 2)** **Violation:** Operating a motor vehicle with expired, canceled, suspended, or invalid insurance.
Assessment 4: 2-year revocation is mandatory on determination of facts by installation commander or designee (355 MSG/CC). **(Note 1 and 2)** **Violation:** Driving on base while installation driving privileges are under suspension or revocation.

Note 1. If revocation for implied consent is combined with driving under the influence, revocation runs consecutively for a total of 24 months.

Note 2. In cases of multiple suspensions or revocations, the periods will run consecutively.

5.2. Restraint Systems.

5.2.1. Operators and passengers of all vehicles operated on DMAFB will wear seat belts in a manner designed by the manufacturer (e.g., wear seatbelts with shoulder straps/belts over the shoulder and not under the arm). Vehicle operators are responsible for ensuring all vehicle occupants wear/utilize required restraint devices on DMAFB.

5.2.2. The following situations are exempt from enforcement in accordance with federal and state guidelines: Vehicles originally manufactured without seat belts (prior to 1966); recreational vehicles, public transportation, buses, school buses, transporting a child in an emergency to obtain medical care.

5.2.3. Federal and State regulations mandates children under the age of 5 must be in an approved child restraint system. Children between the ages of 5 and 8 and are no more than 57 inches tall (4 feet, 9 inches) must be in a Child Restraint System, examples include: an add-on child restraint system; a built-in child restraint system; a factory-installed built-in child restraint system; a rear-facing child restraint system; or a booster seat as defined in Title 49 Code of Federal Regulations, Section 571.213. If stopped by law enforcement, the driver will provide the age and height of the child/children in the vehicle if asked.

5.3. Moving and Non-Moving Violations.

5.3.1. Non-moving citations issued outside military jurisdictions are not considered under the accumulative provision listed in this instruction. For GOVs, the responsible identified operator will be cited under this paragraph. The following mandatory administrative actions, in addition to any appropriate disciplinary action by the violator's commander, will be taken when personnel subject to this instruction have accumulated the number of points indicated during a 12-month period. Security Forces will not issue suspensions or revocations for periods less than 1-year.

5.3.2. Moving violations typically involve one or both of the following:

5.3.2.1. Unsafe Act: an act or omission in traffic that is hazardous.

5.3.2.2. Unsafe Condition: Causing or permitting an illegal and possibly hazardous condition of:

5.3.2.2.1. Highways, roads, or streets used by traffic.

5.3.2.2.2. Vehicles used in traffic.

5.3.2.2.3. A pedestrian or driver in traffic

5.3.3. Non-Moving Violations do not typically involve vehicles, operators, or pedestrians in traffic.

5.4. Cell Phone Use While Driving.

5.4.1. IAW DAFI 31-218 Ch. 4-2, Para. *c*, Section 3, use of cellular or wireless communication devices is prohibited while operating a motor vehicle on all DoD installations unless hands-free.

5.4.2. Additionally, cellular devices being used will not be supported with any part of a driver's body to include hands or perched upon the driver's shoulder or leg.

5.4.3. Drivers will not read, write, or send any text-based message through the communication device while operating a motor vehicle.

5.4.3.1. Browsing forms of social media, watching, or recording videos or any other use of a device that causes a distraction and requires the use of your body is prohibited on DMAFB.

5.4.4. The use of a single earphone or earpiece to conduct voice calls will meet the intent of hands-free use, however, wearing of earphones in, on, or over both ears is unauthorized.

5.4.4.1. Wrist-mounted devices i.e., smartwatches, may be used only to conduct voice calls or voice-based communication while driving.

5.5. Point Assessments.

5.5.1. Points assessed for violations in military jurisdictions will be valid for 24 consecutive months.

5.5.2. See **Attachment 2** for violations and associated point value or actions.

5.5.3. If 2 or more violations are committed on a single occasion, points may be assessed for each individual violation.

Chapter 6

IMPOUNDING PRIVATELY OWNED VEHICLES

6.1. Abandoned Vehicles.

6.1.1. A POV is deemed abandoned if left unattended for a period of 3 calendar days. Building Custodians are responsible for identifying abandoned vehicles within their respective parking areas. **Note:** If a vehicle is in the long-term parking lot with the appropriate Security Forces paperwork displayed in the windshield, it is not considered abandoned **UNLESS** it is 10 or more calendar days after the owner was supposed to have returned and the owner has not contacted Security Forces to request an extension.

6.1.2. Once the vehicle has been identified as abandoned, a DD Form 1408 will be issued by Security Forces personnel. The pink copy will be affixed to the vehicle. If after 72 hours, the vehicle has not moved or the owner/operator has not contacted Security Forces, a DD Form 2504, *Abandoned Vehicle Notice*, will be placed in or on the vehicle, along with DD Form 1408. An additional 72 hours will be given to the owner/operator to remove the vehicle. The instructions listed on DD Form 2504 will include contact info for SF Investigations who is the focal point for removing abandoned vehicles. The original and second copy of the DD Form 2504, the yellow and white copy of the DD Form 1408, along with a JWI, *Justice Web Interface* printout, will be given to SF Investigations for further processing.

6.2. Removal/Towing.

6.2.1. The Security Forces Investigations section will accomplish a DD Form 2505, *Abandoned Vehicle Removal authorization*, and a DD Form 2506, *Vehicle Impoundment Report*. A final attempt to contact the owner will be made via certified mail. If the certified mail is returned, the on-call tow company will be contacted and arrangements for the tow will be made.

6.2.2. If the owner is identified after his/her vehicle is towed, that owner will be responsible for the necessary expenditures to the tow company to retrieve his/her vehicle.

6.2.3. If the current location of a POV hinders safety, mission requirements, or is in a tow-away zone and must be relocated without delay, Security Forces personnel should make all feasible attempts to locate the owner/operator of the vehicle. If contact cannot be made, the 355th Logistics Readiness Squadron or a commercial towing company will be contacted to tow the vehicle to a specified location. All costs of towing and any damage caused to the vehicle will be incurred by the owner of the vehicle.

SCOTT C. MILLS, Colonel, USAF
Commander, 355th Wing

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

AFI 31-115, *Law and Order Operations*, 17 August 2020

DAFI 31-218, *Motor Vehicle Traffic Supervision*, 10 December 2021

AFI 33-322, *Records Management an Information Governance Program*, 27 July 2021

DAFI 90-160, *Publications and Forms Management*, 13 April 2022

DAFI 36-2907, *Adverse Administrative Actions*, 13 October 2022

DAFI 44-121*, Alcohol and Drug Abuse Prevention and Treatment Program*, 17 July 2018

AFI 91-207, The US *Air Force Traffic Safety Program*, 25 July 2019

DODI 6055.04, *DoD Motor Vehicle and Traffic Safety*, 27 August 2021

Adopted Forms

DD Form 1408, *Armed Forces Traffic Ticket*

DD Form 2504, *Abandoned Vehicle Notice*

DD Form 2505, *Abandoned Vehicle Removal Authorization*

DD Form 2506, *Vehicle Impoundment Report*

AF Form 1168, *Statement of Suspect/Witness/Complainant*

AF Form 1176, *Authorization for Search and Seizure*

AF Form 1315, *Accident Report*

AF Form 847, *Recommendation for Change of Publication*

Abbreviations and Acronyms

AFB—Air Force Base

AFI—Air Force Instruction

AFJIS—Air Force Justice Information System

AFMAN—Air Force Manual

ANSI—American National Safety Institute

ARS—Arizona Revised Statute

ATV—All-Terrain Vehicle

BAC—Blood Alcohol Content

BDOC—Base Defense Operations Center

BrAC—Breath Alcohol Content

BX—Base Exchange

CC—Commander

CES—Civil Engineer Squadron

CD—Deputy Commander

DBIDS—Defense Biometric Identification Card

DoD—Department of Defense

DOT—Department of Transportation

DUI—Driving Under the Influence

DWI—Driving While Intoxicated

ECC—Emergency Control Center

EOD—Explosive Ordnance Disposal

GOV—Government Owned Vehicle

IAW—In Accordance With

IDP—Integrated Defense Plan

MSG—Mission Support Group

NCO—Non-Commissioned Officer

OPR—Office of Primary Responsibility

PMO—Provost Marshal Officer

POV—Privately Owned Vehicle

PCS—Permanent Change of Station

SFS—Security Forces Squadron

SRBW—Suspension Revocation Barment Wanted

TDY—Temporary Duty

TSCG—Traffic Safety Coordination Group

vMPF—Virtual Military Personnel Flight

Terms

All—**Terrain Vehicle** (ATV)—A motorized vehicle with three or more wheels, low pressure tires, a wheelbase of 50 inches or less, an overall weight of 600 pounds or less, and a seat to be straddled by the operator. This definition does not apply to other special purpose vehicles, such as golf carts. ATVs are designed for off-road use and are not constructed to carry passengers.

Bicycle—Every device propelled by human power upon which any person may ride, having two tandem wheels, either of which is more than 16 inches in diameter or having three wheels in contact with the ground, any of which is more than 16 inches in diameter.

Crosswalk—Is that part of a roadway at an intersection included within prolongations or connections of the lateral lines of the sidewalks on opposite sides of the highway measured from the curb or, in absence of curbs, from the edges of the traversal roadway. Any portion of a roadway at an intersection or elsewhere distinctly indicated for pedestrian crossing by lines or other markings on the surface.

Delivery Vehicles—Vehicles used by the US Postal Service, UPS, FedEx, Amazon, etc. used to deliver goods, mail, or parcels.

Driver—Is any person who drives or is in physical control of a motor vehicle. A driver is in physical control when in a position to control a motor vehicle, whether to regulate or restrain its operation or movement. For example, an individual sitting in a parked car behind the steering wheel, with the ignition keys or fob in their possession or in the ignition switch. The engine does not have to be running, nor the gears engaged. For the purpose of this instruction, the word "driver" is interchangeable with the word "operator".

Emergency Vehicles—Vehicles used by emergency responders to provide services for an incident, accident, or alarm. Includes, but not limited to: Law Enforcement; Fire; Medical; Explosive Ordinance Disposal. This definition excludes all privately owned vehicles.

Government Owned Vehicle (GOV)—A motor vehicle owned, rented, or leased by Department of Defense (DoD). This includes vehicles owned, rented, or leased by non-appropriated funds activities of the military departments and DoD.

Moped (to include motor scooters)—A lightweight motorized conveyance that can be pedaled as well as driven by a low- powered engine.

Motorcycle—A type of motor vehicle specifically defined as a motor-driven cycle having a seat for the rider and is designed to travel with no more than three wheels in contact with the ground. Tractors and mopeds under 50cc are excluded. The term motorcycle used throughout this instruction includes all powered two or three-wheeled vehicles.

Motor Vehicle—Is any vehicle driven or drawn by mechanical, electrical, or solar power and manufactured primarily for use on public streets, roads, and highways.

Off Highway Vehicle (OHV)—A vehicle designed primarily for use on unpaved or unimproved surfaces. See: All Terrain Vehicle.

Park—The standing of a vehicle (engine off and vehicle in a gear not allowing forward or reverse motion of the vehicle), whether occupied or not, other than temporarily for the purpose of and while engaged in loading and unloading merchandise or passengers.

Pedestrian—Is any person not in or on a motor vehicle or other road vehicle.

Recreational Vehicles—A portable camping trailer, motor home, park trailer, travel trailer or a portable truck camper.

Right-of-Way—The privilege of the immediate use of the roadway.

Roadway—Means that portion of driving surface designed or ordinarily used for vehicular travel, including all property within the right-of-way.

Sidewalk—Is that portion of a street between the curb lines or the lateral lines of a roadway and the adjacent property lines intended for the use of pedestrians.

Stop—Complete cessation of movement. Stop, stopping or standing, if prohibited, means any stopping of a vehicle, whether occupied or not, except when necessary to avoid conflict with other traffic, or in compliance with directives of a police person, traffic control, sign, or signal.

Text Messaging—Reading from or entering data into any handheld or other electronic device, including for the purpose of texting, e-mailing, instant messaging, obtaining navigational information or engaging in any other form of electronic data retrieval or electronic data communication.

Traffic—Pedestrians, ridden or herded animals, vehicles, street cars and other conveyances, either singly or together that are using any part of the roadway.

Traffic Control Devices—Signs, signals, markings, lights, and devices placed by a proper official to regulate, warn, or guide traffic.

Work Vehicles—Vehicles used by Civil Engineers or other maintenance personnel to build, maintain, or repair buildings, facilities, infrastructure, or roadways.

Yield—To slow in speed as to safely give right of way.

Attachment 2

MOVING AND NON-MOVING VIOLATIONS AND POINTS ASSOCIATED

Table 2.1. MOVING AND NON-MOVING VIOLATIONS AND POINTS ASSOCIATED

CATEGORY	VIOLATION WITNESSED (Moving/Non-Moving)	AFJIS OFFENSE (If different from violation title)	POINTS/ACTION
VEHICLE REGISTRATION	Expired Registration (NM)	Failure to abide by registration requirements	3
	License Plate Not Displayed (NM)	Failure to display license plate	2
	Fictitious Plates (NM)	Other Violation	Report Required
DRIVERS LICENSE	Unlicensed Person Operating (NM)	Allowing unlicensed person to operate vehicle	2
	License or Permit Not in Possession (NM)	Other Offense	3
	Altered or Fraudulent License (NM)	Fraudulent Use of License	Report Required
VEHICLE MOVEMENT	Driving On Wrong Side of Road (M)	Other Moving Violation	3
	Driving Against Flow of Traffic/ Wrong Way (M)		
	Unsafe Lane Change (M)		
	Following Too Close (M)		4
	Improper or Unsafe Passing (M)	Improper Passing	4
	Passing in Same Lane (M)		
	Passing Vehicle Stopped for Pedestrian (M)		
TURNS	Failure To Signal (M)		3
	Turn From or Into Improper Lane (M)	Improper Turning Movements	3
	U-Turns (M)		
SPEED	Speed Too Fast for Conditions (M)		2
	Speeding (M)		2 (1-10 MPH) 3 (11-15 MPH) 4 (16-20 MPH) 5 (20+ MPH)
	Speed Too Slow/ Impeding Traffic (M)		2
	Exhibition of Speed/ Street Racing (M)	Speed Contests	6
SERIOUS MOVING VIOLATIONS	Fleeing the Scene, Injury or Death (M)		6
	Fleeing the Scene, Property Damage Only (M)		6
	Reckless Driving (M)		6
	Fleeing or Attempting to Elude a Police Officer (M)		1-year Suspension

	Allowing Intoxicated Person to Operate (M)		1-year Revocation
FAILURE TO YIELD	Car on Right-Hand Side of Intersection (M)	Failure to Yield (no official sign)	4
	When Leaving Stop Sign (M)		
	To Vehicle entering Parking Lot /Driveway (M)		
	Pedestrians In Crosswalk (M)		
	Failure to Yield to Emergency Vehicles (M)		4
TRAFFIC CONTROL DEVICES	Stop or Yield Sign, Traffic Light (M)	Failure to Obey Traffic Signals, Signs, Devices, Instructions	4
	School Bus or Crossing Signals (M)	Failure to Stop for School Bus or Crossing Signals	4
	Failure to Obey SF Person (M)	Failure to Obey Traffic Signals, Signs, Devices, Instructions	4
RESTRAINT SYSTEMS	Driver/Passenger Not Wearing Seatbelt (M)	Failure to use Restraints	4
	Child Requiring Car Seat (M)	Failure to properly restrain child	2
MISCELLANEOUS VIOLATIONS	Operating an Unsafe Vehicle (M)		2
	Wearing of Headphones while Driving(M)		3
	Use/ Operation of A Radar Detector (NM)		3
	Obstruction of View (M)	Other Offense	3
	Inattention to Driving/ Loud Music (M)		3
	No Insurance		1-year Suspension
	Failure to report an Accident (NM)		1
	Open Container (M)		4
	Driving On Sidewalk(M)	Other Moving Violation	3
	Cell Phone Use While Driving (M)		3
VEHICLE EQUIPMENT	Headlights Not Illuminated When Required (M)	Failure to Illuminate or Dim Headlights	1
	High Beams Engaged with Oncoming Traffic (M)		
	Failure to Dim Headlights for Sentry (M)		
	Headlight, Taillight, or License Plate Light Inoperative (M) only assess points if not corrected	Operating an unsafe vehicle	2
	No Mirrors (NM)		

	Occupants Without Seats (NM)		
MOTORCYCLES/ MOPEDS/ MOTOR SCOOTERS	Lane Filtering/ Lane Splitting (M)	Improper passing	4
	No Helmet/ Improper Helmet (NM)	Failure to wear approved helmet	3
	Rider and Passenger Must Have a Seat (M)	Operating an unsafe vehicle	2
PARKING	Double Parked (NM)	Illegal Parking	2
	Blocking a Driveway (NM)		
	Parked in an Intersection (M)		
	Within 15 feet of Fire Hydrant (M)		
	On Sidewalk/ In Crosswalk(M)		
	In a No Parking Zone (NM)		
	Parked Against Flow of Traffic (NM)		
	Straddling Marked Parking Space (NM)		
	Parking as to impede traffic (NM)		
	In Handicapped Space or Fire Lane (NM)	Illegal Parking- Handicap or Fire Lane	3
	Leaving Running Vehicle Unattended (NM)		3